TITLE 43—PUBLIC LANDS: INTERIOR

Subtitle A—Office of the Secretary of the Interior

[Order 2425]

PART 4—DELEGATIONS OF AUTHORITY

BUREAU OF LAND MANAGEMENT

1. Section 4.250 is amended by adding thereto a paragraph reading as follows:

Any authority vested in the Director by any section in this part, may, by an order published in the FEDERAL REGISTER, be delegated by him to the Chief of any Division of the Bureau of Land Management, or the Chief of any Subdivision of such a Division, unless the Secretary in any particular matter determines otherwise, and subject in any event to an appeal to the Secretary pursuant to the rules of practice (43 CFR, Part 221).

2. Section 4.253, contained in Order No. 2226 of July 15, 1946, is amended to read as follows:

§ 4.253 *Associate and Assistant Directors.* Under the supervision of the Director of the Bureau of Land Management, the Associate and the Assistant Directors of that Bureau may exercise all of the powers and authority of the Director.

3. Section 4.300, relating to small tracts and § 4.341 relating to O. and C. timber contracts, contained in Orders Nos. 2238 and 2277 of August 16, 1946, and November 20, 1946, respectively, are revoked.

4. Section 4.303, contained in order of October 2, 1946 (11 F. R. 12018), is deleted from Part 4 and the same text is added to Part 50, Subpart C, Chapter I, Bureau of Land Management, under the centerhead, "Delegations to the Managers," as § 50.502.

(R. S. 161, 453, 2478; 5 U. S. C. 22, 43 U. S. C. 2, 1201; Reorg. Plan No. 3 of 1946, 11 F. R. 7875)

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

MAY 6, 1948.

[F. R. Doc. 48-4268; Filed, May 12, 1948; 8:45 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

PART 50—ORGANIZATION AND PROCEDURE

MANAGERS AUTHORIZED TO GRANT AN EXTENSION OF TIME FOR FULFILLMENT OF REQUIREMENTS

CROSS REFERENCE: For redesignation of § 4.303 as § 50.502, see Part 4 of Subtitle A of this title, *supra.* Section 50.502 as redesignated reads as set forth below:

§ 50.502 *Managers authorized to grant an extension of time for fulfillment of requirements.* When a decision of the Bureau of Land Management allows a specified time for the parties in interest to fulfill certain requirements, if there has been no prior extension for the same purpose, the manager is authorized, when the circumstances warrant such action, to grant an extension of time of not more than 30 days, in addition to that allowed by the decision, for compliance therewith. The extension should be for a fixed period and the date of the expiration of the extension should be shown in the decision. Subsequent requests for additional time must be referred to the Bureau of Land Management for consideration. The manager will notify the Bureau of Land Management by special letter of any extension granted under this authority.

PART 50—ORGANIZATION AND PROCEDURE

DELEGATION OF AUTHORITY

CROSS REFERENCE: For order affecting the list of delegations of authority contained in §§ 50.75–50.181, inclusive, see Part 4 of this title, *supra,* with respect to the exercise of the powers and authority of the Director of the Bureau of Land Management by the Associate and Assistant Directors of the Bureau.

[Circular 1678]

PART 160—GRAZING LEASES

FILING FEES AND RENTAL

MARCH 31, 1948.

Sections 160.7 and 160.14 (Circular 1659, approved October 20, 1947) are hereby amended to read as follows:

§ 160.7 *Filing fees.* Commencing May 1, 1948, no fee shall be charged for filing an application for a grazing lease. If a lease is issued on or after that date on any application theretofore filed, any amount paid as a filing fee will be credited as lease rental. (Sec. 15, 48 Stat. 1275, sec. 5, 49 Stat. 1978; 43 U. S. C. 315m).

§ 160.14 *Rental.* On each new or renewal lease issued on or after May 1, 1948, the lessee shall pay to the District Land Office specified in the lease, in accordance with the terms thereof, an annual rental computed in conformity with the following rate tabulations, unless for sufficient reasons a different rate is authorized:

GRAZING RENTAL RATE TABULATION

Estimated grazing capacity in acres per animal unit month	Estimated grazing capacity in animal units yearlong per section	Yearly lease rate per acre
107.00	0.5	$0.001
53.00	1.0	.002
38.00	1.5	.003
25.00	2.0	.004
20.00	2.5	.005
18.00	3.0	.006
16.00	3.5	.007
14.00	4.0	.008
12.00	4.5	.009
11.00	5.0	.010
10.00	6.0	.012
7.50	7.0	.014
6.50	8.0	.017
6.00	9.0	.019
5.50	10.0	.020
5.00	11.0	.023
4.50	12.0	.025
4.00	13.0	.027
3.75	14.0	.029
3.50	15.0	.030
3.25	16.0	.033
3.00	17.0	.035
2.75	19.0	.040
2.50	21.0	.045
2.25	24.0	.050
2.00	27.0	.055
1.75	30.0	.065
1.50	36.0	.075
1.25	43.0	.090
1.00	53.0	.110
0.50	107.0	.220
0.25	213.0	.440

One cow or one horse or five sheep or five goats constitute one animal unit. The rental charge will not in any case be fixed at less than $1 per annum. The rental may be adjusted at the end of the third year of the lease and at the end of each three-year period thereafter. (Sec. 15, 48 Stat. 1275, sec. 5, 49 Stat. 1978; 43 U. S. C. 315m)

MARION CLAWSON,
Director.

Approved: May 5, 1948.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

[F. R. Doc. 48-4272; Filed, May 12, 1948; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 475]

IDAHO

REVOKING EXECUTIVE ORDER 8932 OF NOVEMBER 5, 1941, AS AMENDED, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 8932 of November 5, 1941, as amended by Executive Order No. 9526 of February 28, 1945, which was revoked in part by Public Land Order No. 222 of April 10, 1944, is hereby revoked as to the remaining lands hereinafter described.

The jurisdiction over and use of such lands granted to the War Department by Executive Order No. 8932 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government, according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on July 2, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from July 2, 1948, to September 30, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Application by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from June 12, 1948, to July 1, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on July 2, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on October 1, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from September 11, 1948, to September 30, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on October 1, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Blackfoot, Idaho, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Blackfoot, Idaho.

The lands affected by this order are described as follows:

BOISE MERIDIAN

T. 2 S., R. 2 E.,
Secs. 1 and 12.
T. 2 S., R. 3 E.,
Secs. 6 and 7.

The areas described aggregate 2,276.98 acres.

The lands in this area vary from rolling to rough and broken, with considerable areas of lava outcropping.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

APRIL 30, 1948.

[F. R. Doc. 48-4269; Filed, May 12, 1948; 8:45 a. m.]

[Public Land Order 476]

ARIZONA

REVOKING PUBLIC LAND ORDER 39 OF SEPTEMBER 10, 1942, AS AMENDED, WITHDRAWING PUBLIC LAND FOR USE OF WAR DEPARTMENT AS PRACTICE BOMBING RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 39 of September 10, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing the public land in the hereinafter-described area for the use of the War Department as a practice bombing range, is hereby revoked.

The jurisdiction over and use of such land granted to the War Department by Public Land Order No. 39 shall cease upon the date of the signing of the order. Thereupon, the jurisdiction over and administration of such land shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on July 2, 1948. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from July 2, 1948, to September 30, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. Sup. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from June 12, 1948, to July 1, 1948, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on July 2, 1948, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on October 1, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from September 11, 1948, to September 30, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on October 1, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Phoenix, Arizona, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Acting Manager, District Land Office, Phoenix, Arizona.

The lands affected by this order are described as follows:

GILA AND SALT RIVER MERIDIAN

T. 8 S., R. 2 E., Sec. 33.

The area described contains 640 acres.

Available data indicate that this land is rough, rolling desert is character.

MASTIN G. WHITE,
Acting Assistant Secretary of the Interior.

APRIL 30, 1948.

[F. R. Doc. 48-4270; Filed, May 12, 1948; 8:46 a. m.]

[Public Land Order 477]

OREGON

REVOKING IN PART EXECUTIVE ORDER 9042 OF JANUARY 26, 1942, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT

By virtue of the authority contained in the act of July 9, 1918 (40 Stat. 845, 848; 10 U. S. C., sec. 1341) and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 9042 of January 26, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing public lands for the use of the War Department for aviation purposes, is hereby revoked so far as it affects the land hereinafter-described.

The jurisdiction over and use of such land granted to the War Department by Executive Order No. 9042 shall cease upon the date of the signing of this or-